

ANDREWS v. ANDERSON

Case No. 23CV46644

DEFENDANTS' DEMURRER TO SECOND AMENDED COMPLAINT

Plaintiff MEG ANDREWS alleges breach of contract, fraud, and elder abuse, with regard to construction work at 3441 Appaloosa Road in Angels Camp.

Before the Court is defendants' demurrer to the Second Amended Complaint.

FRAUD ALLEGATIONS

The general rule concerning pleading a cause of action in fraud is that fraud must be specifically pleaded, and the complaint must state specific facts of how and where the fraud occurred. A vague inclusion of terms contained in the second amended complaint such as: "under the false pretense that false promises," "intentional representations," and/or "The fraud of Defendants, and each of them, was and is malicious, oppressive, despicable, and justifies the recovery of punitive and exemplary damages in amounts according to proof" does not provide the requisite specificity.

The effect of this general rule is twofold: (1) the facts constituting fraud must be alleged (that is, general pleading of the legal conclusion of fraud is insufficient); and (2) every element of the cause of action for fraud must be alleged factually and specifically. The policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. (Hall v. Department of Adoptions (1975) 47 Cal. App. 3d 898, 904, (quoting a legal commentator); Bank of America v. Vannini (1956) 140 Cal. App. 2d 120, 130 (party pleading defense based on fraud required to set forth all elements of fraud)).

Each element of a fraud claim must be factually and specifically alleged by the plaintiff. (See Small v. Fritz Companies, Inc., (2003) 30 Cal. 4th 167, 184.) The policy of liberal construction of pleadings is generally not invoked to sustain a pleading of a fraud claim that is defective in any material respect, and mere conclusory allegations are insufficient. (See Cadlo v. Owens-Illinois, Inc., (2004) 125 Cal. App. 4th 513, 519.)

In California, a plaintiff must plead all the circumstances constituting the alleged fraud with *specificity*. This requirement necessitates pleading facts that show how,

when, where, to whom, and by what means the fraud was committed. (See Robinson Helicopter Co., Inc. v. Dana Corp., (2004) 34 Cal. 4th 979, 993.) Plaintiff must allege every element of the cause of action in full, both factually and specifically, not simply making a general statement that any or all comments or actions were fraudulent.

ELDER ABUSE

To state a cause of action for elder abuse, the plaintiff must plead facts showing two elements: (1) the defendant has subjected an elder to statutorily-defined physical abuse, neglect or financial abuse; and (2) the defendant acted with recklessness, malice, oppression, or fraud in the commission of the abuse. (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 407.)

As with the Fraud Cause of Action, it is not sufficient to simply state that a party is elderly and suffered damages. The plaintiff must allege conduct within the Elder Abuse Act, and those claims must be pled "with particularity." (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) Welfare & Institutions Code section 15657 mandates specific pleading requirements for an elder abuse cause of action and requires more than general allegations. (*Id.*) The California Supreme Court has affirmed that trial courts are to perform the function of gatekeepers for elder abuse claims by examining the material factual content of the pleadings, which requires pleading with factual particularity. (*Id.*)

"The plaintiff must allege (and ultimately prove by clear and convincing evidence) facts establishing that the defendant (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness)." (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406-407 [citations omitted].)

Based on the foregoing reasons, the Court SUSTAINS the demurrer to the Second Cause of Action for Fraud and the Third Cause of Action for Elder Abuse with 20 days leave to amend.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to California Rule of Court 3.1312 in conformity with this Ruling

HANNINK, et al. v. HERNANDEZ

Case No. 23CV46522

**PLAINTIFFS' MOTION TO COMPEL WRITTEN DISCOVERY
AND DEEMING MATTERS ADMITTED**

This action arises from an alleged breach of contract relating to three loans made to defendant.

On May 2, 2023, plaintiff propounded the following discovery on defendant: Form Interrogatories (Set One); Request for Production of Documents and Things (Set One); Special Interrogatories (Set One); and Requests for Admission (Set One). No response have been provided. The Motion to Compel was filed on August 18, 2023.

No opposition to the Motion to Compel was filed.

The Motion to Compel is GRANTED. Defendant, GILBERT HERNANDEZ is to produce complete verified answers, without objection, and produce all responsive documents in his care, custody or control, to Plaintiffs' Form Interrogatories (Set One), Request for Production (Set One), and Special Interrogatories (Set One), by November 3, 2023.

IT IS FURTHER ORDERED that all matters specified in the Requests for Admission (Set One) are deemed admitted and all documents referenced therein are deemed genuine.

As this motion was not opposed, no monetary sanctions are awarded.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to submit a formal Order in conformity with this Ruling.